

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1135 of 2011

F. M. Lutfur Rahman (President) and others

----- Petitioners

-Versus-

Md. Bulbul Sheikh and others

----- Opposite Parties

Mr. Kamal Uddin Bhuiyan, Advocate

----- For the Petitioners

Mr. Md. Abdul Jabbar, Advocate

----- For the Opposite Parties

Heard on: 07.11.2016

Judgment on: 21.11.2016

At the instance of the present-respondent-petitioners, this Rule was issued calling upon the Opposite Party No. 1 to show cause as to why the judgment and order complained of in the petition moved in court today should not be set aside.

This Rule is directed against the judgment and order dated 05.01.2011 passed by the Additional District Judge, Second Court, Bagerhat in Misc. Appeal No. 3 of 2009 allowing the appeal by reversing the judgment and order dated 24.02.2008 passed by Assistant Waqf Administrator, removing the present opposite party No.1, Md. Bulbul Sheikh under section 32(1) of the Waqf Ordinance from the post of Mutuwalli of Akbar Ali and others Waqf Estate, E. C. No. 16200 and in place of him approving the 8 (eight) members committee for a period of 2

(two) years and directing the committee to take over the charge of Waqf Estate from the opposite party No.1

The relevant facts for disposal of the Rule, inter-alia, are that the Waqf Estate was created on 16.06.1975 by one Mr. Akub Ali alias Akbar Ali and another Mr. Syed Ali Sheikh who executed a Waqf deed as the Waqueef of the “Mr. Akbar Ali and others Waqf Estate” by a registered Waqf deed No. 13615 with the Sub-Registration Office, Bagerhat, Sadar and one Abu Sayed Mia was appointed as the Mutuwalli of the Estate. The Estate was subsequently enlisted with the office of the Waqf Administrator of Bangladesh by enlisting as the E.C. No. 16200. The said Mr. Abu Sayed Mia later on appointed the present opposite party No. 1, Md. Bulbul Sheikh in the year of 1993 as the Mutuwalli of the Estate by executing a deed while he was performing his duty and the present opposite party NO. 1 was performing his duty as Mutuwalli of the Estate. Thereafter, some allegations were brought for misappropriation of money of the Waqf estate and also negligence of his duty. On the basis of the above allegations, the local interested peoples formed a committee consisting of nine members to perform activities of the estate. On 26.10.2006 the said committee made an application to the opposite party No. 2, the Waqf Administrator, to remove the present opposite party No. 1, Mr. Bulbul Sheikh, from Mutuwalli and also prayed in the said application to approve the committee for performing day to day duties.

Pursuant to the above application, the Waqf Administrator issued a show cause notice upon the opposite party No. 1 as to why he should not be

removed from Mutuwalli of the estate. The show cause notice also contains a direction to supply the statement of up to date income and expenditures of the Estate. In reply, the present opposite party No. 1 by the letter dated 20.12.2006 denying the allegations brought against him and also requested not to remove him. On receipt of the said reply the Waqf Administrator appointed the Waqf Auditor of the Khulna District to inquire into the matter and to submit a report thereof after hearing both the parties. The inquiry officer (Waqf Auditor) submitted a report on 30.09.2007 stating that the allegations of misappropriate and negligence have been approved against the Mutuwalli, opposite party No. 1. The committee members also reported a recommendation for removal of the Mutuwalli and to approve the committee of the estate.

In response to the above report, the present opposite party No.1 and his given reply to the allegations by a letter dated 02.10.2007 there was a hearing of both the parties before the Assistant Waqf Administrator. After hearing both the parties the Waqf Administrator passed the judgment and order on 24.02.2008 removing the opposite party No.1, Md. Bulbul Sheikh, from Mutuwalli of the estate and also appointing a committee consisting of eight members for performing day to day functions of the estate for a period of two years by the registered letter dated 24.02.2004 which was written by the Assistant Waqf Administrator on behalf of the Waqif Administrator. The said letter also contains a direction upon the opposite party No.1, Md. Bulbul Sheikh, to hand over charge of the committee.

Being aggrieved the present opposite party No. 1 preferred the Miscellaneous Appeal No. 03 of 2009 under section 35 of the Waqf Ordinance 1962 on 14.01.2009 in the court of learned District Judge Bagerhat which was heard by the learned Additional District Judge 2nd court Bagerhat on transfer who by his judgment and order dated 05.01.2011 allowed the appeal by setting aside the judgment and order of the Waqf Administrator dated 24.02.2008. This revisional application has been filed under section 32(3) of Ordinance 1962 impugning the judgment and order of the appellate court and the rule was issued thereupon.

Mr. Kamal Uddin Bhuiyan, the learned Advocate appearing for the petitioners submits that the appeal was filed by the present removed Mutuwalli, the opposite party No. 1, without handing over the charge in violation of proviso 32(2) of the Ordinance thereafter the impugned judgment and order passed by the appellant court below is not sustainable under the law as such the Rule is liable to be made absolute.

The Rule has been opposed by present opposite party No. 1 without filling any counter affidavit.

Mr. Md. Abdul Jabbar, the learned Advocate appearing for the opposite parties submits that the Waqf Administrator committed a serious violation of law by removing him from Mutuwalli of the Estate without taking a proper step and without giving him any opportunity to defend himself, as such, the learned appellate court lawfully set aside the order passed by the Administrator and the Rule is liable to be discharged.

The learned Advocate also submits that the appeal was filed under Section 35 of the Waqf Ordinance because the said provision contains that the Mutuwalli or any person claims in interest of the estate in respect of which notification has been issued by the Waqf Administrator. In the present case, the order was passed by the Administrator to remove the Mutuwalli and to hand over charge illegally to a fresh committee. There is no violation of the Waqf Ordinance in filing the appeal under Section 35 of the Ordinance. The learned Advocate also submits that the present opposite parties filed the appeal beyond the limitation period because the handover of charge was not possible as the circumstances were beyond his control.

In support of his case the learned Advocate referred the case of Abul Hashem @ Abul Hasem Talukder Vs. Administrator of Waqfs & others.

Considering the above submissions made by the learned Advocates and also considering the revisional application filed under Section 32(3) of the Waqf Administrator 1962 along with the annexure therein, in particular, the impugned order passed by the appellate court below and also considering the lower court records, it appears to me that the Waqf estate was created by execution of a Waqf deed dated 06.06.1975 by the name of “Akbar Ali and Others Waqf Estate” and it was enlisted subsequently with the Waqf Administrator of Bangladesh as E.C. No. 16200. One Mr. Abu Syed Mia was appointed as the first Mutuwalli but because of his illness he appointed the present opposite party No.1. Mr. Md. Bulbul Sheikh as Mutuwalli of the estate in the year of 1993 who was performing his duty with sincerity and honesty. The above mentioned Waqf deed contains

duties of the Mutuwalli to maintain Mosque, Madrasha, pond, drinking water for welfare of local people among others.

It further appears that local people raised some allegations against the opposite party No. 1 for misappropriation of money and for being negligence in the duty. The said local people made a complaint with the Administrator. It also appears that said local people formed a local committee and requested the Waqf Administrator to remove the opposite party No. 1 from the functions of Mutuwalli and to approve the committee. The Waqf Administrator, the opposite party No. 2, by the order dated 24.02.2008 removed the opposite party No. 1 from Mutuwalli and appointed the committee to undertake functions of Waqf Estate.

Now the question is why the Waqf Administrator has taken above decisions. In this regard I have carefully examined the record and the judgment and order passed by the Administrator on 24.02.2008 as well as the relevant provision of law under the Ordinance 1962.

The Administrator came to conclusion to removed the present opposite party No. 1 from Mutuwalli on the basis of the following findings:

“সুত্রে বর্ণিত ওয়াকফ এস্টেটের মোতাওয়াল্লীর স্থলে কমিটির মাধ্যমে এ-স্টেট পরিচালনা সংক্রান্ত তার দাখিলী আবেদন এর প্রেক্ষিতে (ডাইরী নং - ৩০৩৫ তাং- ৩১/১০/২০০৩) উভয় পক্ষের শুনানী গ্রহণ করা হয়। শুনানীতে ই উভয় পক্ষের কাগজপত্র ও স্বাক্ষর প্রমাণ মোতাওয়াল্লী কর্তৃক এ-স্টেটের অর্থ আত্মসাৎ এর অভিযোগ প্রমাণিত হয়। আরও প্রমাণিত হয় যে, এ-স্টেট পরিচালনায় বর্তমান মোতাওয়াল্লী অদক্ষ ও অ-যোগ্য। তাই বর্তমান মোতাওয়াল্লী-ক ওয়াকফ অধ্যাদেশ ৩২(১) ধারার বিধান মত অপসারণ ক-র তদন্ত প্রতিপক্ষের গঠিত নিম্নবর্ণিত কমিটির গত ১৫/০৯/২০০৬খ্রি: তারিখের সভার প্রস্তাবমত তা-ক (গোলাম রসুল খোকন) সেক্রেটারী নিযুক্ত করা হল। ”

Regarding the above judgment of the Waqf Administrator the relevant law have been provided in under Section 32(1) which reads as follows:

Notwithstanding anything contained elsewhere in this Ordinance or in any other law for the time being in force, the Administrator may, on his own motion or an application of any person, remove a Mutuwalli-

- (i) for breach of trust, mismanagement, malfeasance or misappropriation or
- (ii) for any act of the Mutuwalli causing loss of Waqf property or affecting the proper Administration, control of preservation of the Waqf: or
- (iii) if the existing Mutuwalli is found unsuitable, incompetent, negligent or otherwise undesirable:

Provided that no such order for removal of a Mutuwalli shall be made without giving him an opportunity of being heard.

However on appeal the learned Additional District Judge 2nd Court, Bagerhat, allowed the appeal preferred by the present opposite party No. 1 as the appellant on the basis of the following findings:

“ বর্তমান মোতয়ালী অদক্ষ ও অ-যাগ্য ম-র্ম ৩২(১) ধারা অনুযায়ী অপসারণ করা হয়। কিন্তু কি কাজগপত্র দেখা হয় বা কোন সাক্ষ্য প্রমাণ গ্রহণ করা হয় তাহার উল্লেখ নাই। এমতাবস্থায় উক্ত আ-দ-শ-ক যথাযথ ও আইনানুগ বলা যায় না। ইহা ছাড়া আ-দ-শ দোতরফা শুনানীর কথা বলা হইয়া-ছে। কিন্তু আপীলকারী বর্ণনা ক-রন যে, তাহা-ক অভি-যোগ সম্বন্ধ জানা-না হয় নাই। আপীলকারীকে জানাইয়া বা তাহার জ্ঞাত সারে বা তাহার শুনানী নিয়া তর্কিত আ-দশ প্রদান করা হইয়া-ছে এমন কোন প্রমাণ পাওয়া যায় না। তর্কিত আ-দশটি দৃ-ষ্ট কোন কিছু পরিস্কার বুঝা যায় না বা বর্তমান মোতওয়ালীর আত্মসাৎ বা অদক্ষতা ও অ-যাগ্যতা প্রামাণিত হয় না। কাজেই তর্কিত আদেশটি বহালযোগ্য নহে। আপীলটি মঞ্জুর হই-ব। ”

I have examined that there was an inquiry and an auditor report was submitted on 30.09.2007 to the Waqf Administrator of Bangladesh which reads as follows:

“ আমার তদন্তকালীন সম-য় এ-স্ট-টর মোতওয়ালী জনাব বুলবুল শেখ আ-বদনকারী জনাব গোলাম রসুল (খোকন) সহ প্রায় ১৫/২০

জন লোক উপস্থিত ছি-লন। তাহা-দর উপস্থিত সাক্ষরিত পত্র
অত্রসাথে সংযুক্ত করা হইল।

তদ-ন্তর শুরু-ত আ-বদনকারী জনাব গোলাম রসুল (খোকন)
কে জানি-ত চাহি-ল তিনি জানান জনাব বুলবুল শেখ এ-স্ট-টর
মোতাওয়াল্লী নিযুক্ত হওয়ার পর হইতে এ-স্ট-টর আয় গোপনসহ
এ-স্ট-ট স্থাপিত মাদ্রাসা ও মসজিদ বিলুপ্ত করিয়া-ছেন। এ-স্ট-টর আয়
হই-ত ধর্মীয় কার্যাদি না করিয়া তিনি নি-জই আত্মসাৎ ক-রন।
এস্টেটটি এলাকার একটি ধর্মীয় প্রতিষ্ঠান হওয়ায় উক্ত প্রতিষ্ঠানের
অচলাবস্থা ও অনুন্নয়ন এলাকাবাসী-ক ব্যথিত করায় সক-লই
সর্বসম্মতিক্রমে সিদ্ধান্ত গ্রহণ করেন যে, মোতাওয়াল্লী স্থ-ল একটি
কমিটির দ্বারা এ-স্টেটটি পরিচালনা করি-ল মসজিদ মাদ্রাসা পুনঃস্থাপন
সহ সঠিকতা-ব ধর্মীয় কার্যাদি পরিচালনা, এ-স্ট-টর আয় বৃদ্ধি ও
স্বচ্ছলতা আসি-ব। যাহা-ত এলাকার লোকজ-নর ম-ধ্য ধর্মীয়
অনুভূতি আরও জোরদার হই-ব এ ল-ক্ষ তিনি গত
২৬/১০/২০০৬ইং তারিখ ৯(নয়) সদস্য বিশিষ্ট একটি কমিটির
তালিকা দাখিল ক-র। তাহা অনু-মাদ-নর জন্য তিনি সহ উপস্থিত
অন্যান্য সদস্যবৃন্দ ও সংশ্লিষ্ট এলাকার গন্যমান্য ব্যক্তিগণ আমার
কিট জোরা-লা অনু-রাধ ক-রন।”

After reading the above report and considering the relevant law, it
transpired to me that the present opposite party No.1 caused serious loses
to the Waqf estate and also the materials were present to prove that there
was some misappropriation of money and some negligence in the
management of the Administration of the estate. Therefore, the learned
appellant court came to a wrongful decision by findings that the opposite
party No. 1, Md. Bulbul Sheikh was not given sufficient opportunities to
defend himself before the inquiry committee formed by the opposite party
No. 2, the Waqf Administrator. I, therefore, consider that the Waqf
Administrator has not committed any error of law and fact by removing the
present opposite party No. 1 from Mutuwalli.

Regarding the question raised by the learned advocate for the
petitioner as to filing of the appeal under Section 35 instead of Section
32(2) of Waqf Ordinance because under Section 35, of the Ordinance is not

regarding any order passed by the Waqf Administrator to remove a Mutuwalli or appointing a Management committee, therefore, I consider that the learned appellate court by allowing appeal has committed an error of law which is not sustainable under law and it should be set aside. I am therefore inclined to interfere in the judgment of the appellate court below.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The interim order of stay upon the operation of impugned judgment and direction to maintain status-quo granted at the time of issuance of the Rule are hereby recalled and vacated.

The office is directed to communicate the judgment and order to the court concerned and send down the Lower Court's Records immediately.